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Editorial - Sacramento's growing war on landlords

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Rental housing is a business, not a war crime, but that hasn't stopped lawmakers in Sacramento from going nuclear against the owners of apartment buildings in California.

A dozen bills targeting the rental housing business have been introduced in the state Legislature. Combined, they represent what might be the greatest assault on property rights in the history of the state.

The Assembly Housing and Community Development Committee is currently considering Assembly Bill 36, which would allow local governments to enact rent control on buildings that are more than 10 years old, and also on single-family homes and condominiums. This is another attempt to do what voters refused to do in November when they rejected Proposition 10, which would have repealed the 1995 Costa-Hawkins Rental Housing Act, a state law that limited local rent control ordinances.

Interestingly, we would support this legislation as it affects Woodland because we've seen too many apartments being bought up by out-of-town companies, who immediately jack up the rents and force people out. The Woodland City Council recently heard a tearful presentation from a woman who was being forced out of her home because the rent was going up by around $800. She was on a fixed income. And she's not the only person in the same predicament.

The housing committee is also considering AB 1482, a statewide prohibition on rent increases above a certain percentage (not yet determined), and AB 53, which would make it illegal for rental or lease applications to ask if the applicant has a criminal record. AB 53 is set for a hearing on April 24.

The Assembly Judiciary Committee is looking at AB 1481 and AB 1697, which would restrict the rights of property owners to evict tenants without first establishing "just cause"; AB 1110, which would require three to four months advance notice of some rent increases; and AB 724, which would establish a statewide rental registry to track "displacements" and evictions. A hearing on AB 724 has been scheduled for April 23.

Also in the Assembly Judiciary Committee is AB1188, authored by San Fernando Valley Assemblyman Jesse Gabriel, which would give all tenants the right to house "a person at risk of homelessness" in their apartment for 12 months "without negative repercussions from the owner or landlord of the property," regardless of the terms of the lease or rental agreement.

Over in the Senate Judiciary Committee, a hearing date of April 23 has been set for Senate Bill 529, which would allow tenant associations to withhold rent payments for up to a month over "grievances" with a property owner. SB 529 would require a landlord to allow a tenant association to organize, distribute literature and hold meetings on the property, which the landlord is not permitted to attend unless invited.

Why would anyone choose to be in the business of rental housing if the government controls prices, but not costs? How can a property owner maintain the quality and condition of an apartment building if the government gives tenants the right to invite more people to live in their units, regardless of the terms of the lease? Why shouldn't property owners have the right to exclude people with criminal records from residing in their property? By what authority does the government require property owners to empower their tenants to organize a rent strike?

People need housing, but people also need food and clothing, and the government doesn't control the prices in supermarkets or retail stores. It doesn't force store managers to help customers organize and take merchandise

without paying, or mandate two-for-one specials for shoppers who are supporting a “person at risk of homelessness.”

There needs to be a solution found to rising rents, but we’re not sure draconian action against landlords is the answer. Maybe action against “corporate landlords” is the way to go. We don’t know, but singling out the rental housing industry for disparagement and destruction is not the way to solve California’s housing crisis.

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